

19STCV40490 19STCV40490

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Case Number: 19STCV40490 Hearing Date: June 26, 2026 Dept: T

19STCV40490 Veiseh v Masco

[TENTATIVE] ORDER: Specially Appearing

Defendant Masco Corporation's Motion to Quash/Dismiss the Complaint is GRANTED. The Complaint is dismissed without prejudice as to Specially Appearing Defendant Masco Corporation.

Specially Appearing Defendant Masco Corporation's

Alternative Motion to Quash for Failure to Serve the Summons is MOOT.

Specially Appearing Defendant Masco Corporation's Request

for Judicial Notice is GRANTED as to the existence of the documents but not as to any hearsay or facts in dispute.

Plaintiff Reza Veiseh's Request for Judicial Notice is

GRANTED as to the existence of the documents attached as Exhibits 1 and 2 but not as to any hearsay or facts in dispute; and DENIED as to Exhibits 3-6.

Plaintiff Reza Veiseh's Evidentiary Objections are OVERRULED

as to nos. 1-7 and SUSTAINED as to no. 8.

Specially Appearing Defendant Masco Corporation's

Evidentiary Objections to Plaintiff Reza Veiseh's Request for Judicial Notice are SUSTAINED as to nos. 2-5 and OVERRULED as to no. 1.

Specially Appearing Defendant Masco Corporation's

Evidentiary Objections to Plaintiff Reza Veiseh's Declaration are SUSTAINED as to nos. 1, 2, 4, and 5; and OVERRULED as to nos. 3, 6-13.

Introduction

Specially Appearing Defendant Masco Corporation (Defendant) moved to quash/dismiss Plaintiff Reza Veisheh's (Plaintiff) Summons and Complaint (S&C). In the alternative, Defendant moved to quash the proof of service filed on April 1, 2026.

Discussion

Defendant argued that the action must be dismissed for Plaintiff's failure to serve the action upon Defendant within three years of commencing the action and/or Plaintiff's failure to file the Proof of Service (POS) within 60 days after the time the S&C must be served upon the defendant.. (Code Civ. Proc.[1], secs. 418.10(a); 583.210; 583.250.) The Court has limited discretion in ruling on a mandatory dismissal motion because the statute expressly states that the three-year period for service is "not subject to extension, excuse, or exception except as expressly provided by statute." (Sec. 583.250(b).) The statutory grounds for tolling the mandatory three-year period are: (1) defendant was not amenable to service; or (2) the action was stayed and the stay affected service; or (3) validity of service was the subject of litigation; or (4) service was "impossible, impracticable, or futile" due to causes beyond plaintiff's control. (Sec. 583.240(a) – (d).)

The action commenced on November 12, 2019. The expiration of the three-year deadline for service of the action is Monday, November 14, 2022, because November 12, 2022, fell on a Saturday. The additional 60-day time-period to file the POS expired on January 13, 2023. However, the procedural history of the action shows that Plaintiff filed a POS on December 9, 2019, showing that Defendant was personally served on November 27, 2019. As a result of the service, default and default judgment were entered against Defendant in 2021 and writs of execution were recorded in 2025. Defendant filed a motion to set aside the default and default judgment and writs of execution on September 24, 2025, and on December 10, 2025, which were scheduled to be heard on January 7, 2026, but ultimately heard and granted on February 24, 2026. Defendant asserted that default/default judgment were void per Section 473(d) because the S&C were not served upon Defendant. Because the Court granted the motion to set aside the

default/default judgment on the grounds that service was invalid, personal service of the S&C on November 27, 2019, was ineffectual and could not act to bring service within the three-year or 60-day time periods. Good cause is presented to support the motion to dismiss.

Even with the tolling of the statute period per Section 583.240(c) – litigation of the validity of service, the two new tolled time periods would not save the action from dismissal. Because Defendant's motion to set aside litigated the validity of service the deadline for service and filing the POS, the deadlines were tolled between September 24, 2025, and February 24, 2026, which amounts to 153 days. The newly-tolled three-year deadline became Wednesday, April 26, 2023. The newly tolled 60-day deadline for filing the POS became Monday, June 26, 2023, since June 25, 2023, is a Sunday. As reflected in the Court file, Plaintiff did not serve the S&C and did not file a POS to the S&C prior to these new deadlines. Further, any reliance upon the November 27, 2019, personal service date is ineffectual because the Court found the service to be ineffectual. Good cause remains to dismiss the action even with the newly tolled deadlines.

Plaintiff then argued that the deadlines are tolled due to impracticability or futility. (Sec. 583.240(d).) Plaintiff asserted that it would be impractical/futile for Plaintiff to re-serve the action while Defendant was in default/default judgment. Plaintiff asserted that the "clock" reset for purposes of service on February 24, 2026, when the Court invalidated the November 27, 2019, service. However, Plaintiff fails to present any legal authority to support the contention that the "clock" would reset to February 24, 2026, and/or the three-year or 60-day time-period would be tolled from November 27, 2019, through February 24, 2026. Further, tolling based upon impossibility, impracticability, or futility requires a showing that the cause was beyond Plaintiff's control. (Sec. 583.240(d).) The failure to serve the S&C on November 27, 2019, was not beyond the Plaintiff's control. On the February 24, 2026, hearing, the Court found Defendant's evidence showing no actual service to be more persuasive over the declaration of Plaintiff's non-registered process server. Because Plaintiff's method of service was the issue at the hearing on the motion to set aside, the cause of the impracticability or futility was within Plaintiff's control. Plaintiff's argument as to impracticability and futility under Section 583.420(d) is unpersuasive.

Plaintiff then argued that the S&C was subsequently sub-served upon Defendant on March 27, 2026. (See POS filed on April 1, 2026.) However, service in 2026 is insufficient to show compliance with the three-year or 60-day time periods because the time periods expired on April 26, 2023, and June 26, 2023, respectively. Plaintiff's service of the S&C upon Defendant in 2026 is insufficient to show compliance with statutory deadlines.

Plaintiff then argued that Defendant had actual knowledge of the action; that they named Defendant in good faith; and that the sale of Milgard to MIWD Holding Company LLC six days prior to the filing of the action should not be held against Plaintiff. However, the Court's authority/discretion is limited in extending, excusing, or finding exceptions to the three-year deadline. (Sec. 583.250(b).) The only authority to extend, excuse, or find exceptions to the deadline is the tolling statute, which was reviewed above and not found in Plaintiff's favor. (Sec. 583.240.) Plaintiff's contentions that Defendant had actual knowledge of the action; that Plaintiff acted in good faith; and/or that Plaintiff lacked knowledge of a corporate conveyance are not proper grounds for the Court to extend, excuse, find exception, or toll the deadlines. Plaintiff failed to meet his burden of proof.

The motion to dismiss the action is GRANTED as to Defendant.

Defendant's alternative motion to quash is MOOT.

[1] All subsequent citation to statute is to the Code of Civil Procedure, unless otherwise identified.

[TENTATIVE] ORDER: Non-Party Milgard Manufacturing, LLC's Motion to Quash/Dismiss the Complaint is MOOT.

Non-Party Milgard Manufacturing, LLC's Alternative Motion to Quash for Failure to Serve Summons is GRANTED. The Proof of Service filed on April 1, 2026, as to Milgard Manufacturing, LLC is STRICKEN.

Non-Party Milgard Manufacturing, LLC's Request for Judicial Notice is GRANTED as to the existence of the documents but not as to any hearsay or facts in dispute.

Plaintiff Reza Veiseh's Request for Judicial Notice is
GRANTED as to the existence of the documents attached as Exhibits 1 and 2 but
not as to any hearsay or facts in dispute; and DENIED as to Exhibits 3-6.

Plaintiff Reza Veiseh's Evidentiary Objections are OVERRULED
as to nos. 1-7 and SUSTAINED as to no. 8.

Introduction

"Specially Appearing Defendant"/Non-Party Milgard
Manufacturing, LLC (MMLLC) moved to quash/dismiss Plaintiff Reza Veiseh's
(Plaintiff) Summons and Complaint (S&C). In the alternative, MMLLC
moved to quash the proof of service filed on April 1, 2026.

Discussion

Before the Court can dismiss an action or quash the April 1,
2026, proof of service as to MMLLC, the Court must first determine if MMLLC is
a party defendant to the action. Without being a party to the action, the
Court questions whether it has jurisdiction over MMLLC. To be a party to
the action, MMLLC must be named in the Complaint and a Summons is required to
be issued as to MMLLC.

The Summons and Complaint in the Court file shows that the
only named party defendant is "Masco Corporation a.k.a. Milgard". MMLLC
is not a named party in the Summons or the Complaint. Further, naming
"Milgard" as an alias for Masco Corporation is insufficient to name MMLLC in
the Complaint because MMLLC is seen to be a separate person/corporate entity
from Masco Corporation. The Court file does not reflect that any Summons
was issued as to MMLLC. The Court file also does not show that Plaintiff
substituted MMLLC as a Doe Defendant. The Court file further does not
show that an amended pleading added MMLLC as a party defendant. The
original Complaint filed on November 12, 2019, is the operative pleading and it
only names "Masco Corporation a.k.a. Milgard" as a party defendant.
Because MMLLC is not named as a party defendant in the Complaint, the Court did
not and could not have issued a Summons as to MMLLC. Without naming
MMLLC in the Complaint or a Summons, MMLLC is not a party to this action.
Without being a party to this action, there is no basis for the Court to
quash/dismiss the Complaint as to MMLLC. Further, the April 1, 2026,
Proof of Service asserting that the Summons and Complaint being served upon

MMLLC is unfounded since MMLLC is not a named party to the Complaint and no Summons has been issued as to MMLLC.

The motion to quash/dismiss the Complaint as to MMLLC is MOOT because MMLLC is not a party to this action.

The alternative motion to quash the proof of service filed on April 1, 2026, is GRANTED because MMLLC is not a named party to this action and no summons was ever issued as to MMLLC.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.